

# The Assam Famine Relief and Insurance Fund Act, 1948

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State of Assam - Act

The Assam Famine Relief and Insurance Fund Act, 1948

ASSAM

India

The Assam Famine Relief and Insurance Fund Act, 1948

Act 28 of 1948

Published on 29 December 1948

Commenced on 29 December 1948

[This is the version of this document from 29 December 1948.]

[Note: The original publication document is not available and this content could not be verified.]

The Assam Famine Relief and Insurance Fund Act, 1948

Assam Act

28 of 1948

Last Updated 12th February, 2020

Published in the Assam Gazette, dated the 29th December, 1948.

An Act to provide for the establishment and maintenance in the Province of Assam of a fund called the Assam Famine Relief and Insurance Fund.

Preamble. - Whereas it is expedient to provide for the establishment and the maintenance in the Province of Assam of a Fund for expenditure upon relief of, and insurance against distress caused by serious draught, flood, earthquake, fire, cyclone and other natural calamities in the said Province ;

It is hereby enacted as follows :

1.

Short title, extent and commencement.

(1)

This Act may be called the Assam Famine Relief and Insurance Fund Act, 1948.

(2)

It extends to the whole of Assam.

(3)

It shall come into force on such date as the State Government may, by notification in the official Gazette, appoint.

2.

Definitions.

- In this Act unless there is anything repugnant in the subject or context-

"Fund" means the Assam Famine Relief and Insurance Fund established under Section 3.

3.

Establishment of the Assam Famine Relief and Insurance Fund.

- On the commencement of this Act, the State Government shall establish in and for the State of Assam a fund called the "Assam Famine Relief and Insurance Fund". The Fund shall consist of-

(i)

the contribution of the State Government under Section 4 ;

(ii)

any contribution by the Government of India ;

(iii)

any other sums as the State Government may transfer from the unspent balance of the budget provisions of any year under Section 4 ; and

(iv)

donations if any, by the public or by any institution or association for the purposes mentioned in Section 5.

4.

Initial contribution to the Assam Famine Relief and Insurance Fund.

- As soon as may be after the commencement of this Act, the State Government shall make an initial contribution to the fund of the sum of three lakhs of rupees provided under "64-A Famine Relief" in the budget for the year 1948-1949 or the unspent balance thereof the date of creation of the fund (and thereafter, an annual contribution of not less than rupees one lakh shall be provided under "64-B. Transfer to Famine Relief Fund" to which shall also be transferred the unspent balance, if any, at the end of each financial year, under "54-A. Famine Relief").

5.

Purpose for which the fund may be utilised.

- Expenditure from the fund shall not be incurred except upon the relief of, and insurance against famine and distress caused by draught, flood, earthquake, fire, cyclone or other natural calamities in the said State :

Provided that if at any time, the total amount of the fund exceeds twenty lakhs of rupees, the excess may be utilised on protective irrigation work and other works for the prevention of famine or flood in the said State.

6.

Investment and re-investment of the amount not required.

- The State Government shall, from time to time, invest or re-invest in Government securities all amount and the interest accrued thereon to the credit of the fund, which may not be immediately required for any of the purposes mentioned in Section 5.

7.

Accounts of the fund and making up of the deficiency in the fund.

(1)

The accounts of the fund shall be made up at the end of each financial year in a proforma account which shall be prescribed.

(2)

If the accounts so made up in respect of any year show that the balance at the credit of the fund has reached a total of ten lakhs of rupees and if in respect of any year thereafter the balance falls short of that amount the deficiency shall be

made up by contribution from the revenue of the State :

Provided that if the deficiency exceeds one lakh of rupees it may be made up in annual instalments not exceeding one lakh each.

8.

Power to make rules.

- The State Government may make rules for carrying out the purposes of this Act.

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